

9:30 AM

LINE: 3

24-CLJ-05151

AMERICAN EXPRESS NATIONAL BANK VS. DALAL ISHAQAT, ET AL

AMERICAN EXPRESS NATIONAL BANK
DALAL ISHAQAT

AARON N. BALDARO

PLAINTIFF AMERICAN EXPRESS NATIONAL BANK'S MOTION TO VACATE THE CONDITIONAL DISMISSAL AND FOR ENTRY OF JUDGMENT

TENTATIVE RULING:

Plaintiff American Express National Bank's unopposed motion to set vacate the conditional dismissal and enter judgment pursuant to the court's retained jurisdiction under Code of Civil Procedure section 664.6 as agreed in the parties' stipulation against Defendant Dalal Ishaqat is **GRANTED**.

Under Code of Civil Procedure, section 664.6, the court retains jurisdiction in a case pending full performance of the terms of a written settlement agreement and such agreement may then be enforced upon motion of the aggrieved party. (*Id.*)

Here, the parties entered into a stipulated settlement agreement which was filed with the Court on December 5, 2024. A copy of the agreement is attached to the Declaration of Plaintiff's Counsel, Scott D. Dyle, as Exhibit A. The agreement states the parties agree to the Court's retained jurisdiction pursuant to Code of Civil Procedure 664.6. (Declaration of Scott D. Dyle, Ex. A ¶¶ 5, 12, 13, 18 & 21.) The agreement provides that judgment in the amount of \$23,553.56 would not be entered against defendant so long as defendant made monthly payments to plaintiff until defendant paid judgment amount in full. (Dyle Decl. ¶ 5.) In the event of default, the parties agreed that the Court was authorized to enter judgment in favor of the plaintiff and against defendant in the amount of \$23,553.56, less payments received plus court costs incurred. (*Id.*)

The Court finds plaintiff has presented uncontroverted evidence that defendant defaulted because her last payment was November 26, 2024. (Dyle Decl. ¶ 7.) As such, the Court finds plaintiff has established under the terms of the parties' stipulated agreement that plaintiff is entitled to judgment in the amount of \$23,553.56, less credit for payment of \$500, plus costs of \$510 for a grand total of \$23,563.56. (Dyle Decl. ¶ 10.)

Accordingly, the **conditional dismissal filed on December 5, 2024, is SET ASIDE** and plaintiff's motion to vacate conditional dismissal and for entry of judgment pursuant to Code of Civil Procedure section 664.6 as agreed to in the parties' stipulation is **GRANTED**.

Judgment in the amount of **\$23,563.56** shall be entered against defendant and payable to plaintiff upon entry of this order.

Any party who contests a tentative ruling must email Dept.2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

Posted: 3:00 P.M.

